



DEPARTMENT OF PUBLIC SAFETY GEORGIA STATE PATROL

PURSUIT CRITIQUE

TROOPER NAME – TFC Evan Johnson #576

Work Assignment: Troop/Division - A; Post/Unit – 3 - Cartersville

INCIDENT REPORT # DPS00168499

Related Crash Reports: C000948968 ; C000950408 ; _____

P.I.T. Involved: Yes

S.C.R.T. Involved: No

Special Investigations Unit Involved: No

Use of Force Involved: No

MEETING

1. Document the date, time and location of the pursuit critique meeting with the involved trooper.

Date: 4/26/2024

Time: 1115 Hours

Location: Post 3 - Cartersville

2. List all personnel present at the meeting by name and rank. Include the trooper, an NCO in whose territory the pursuit was terminated, and the trooper's immediate supervisor.

Personnel present: Lieutenant Tim Nichols #36, SGT Steve Langham #192 and TFC Evan Johnson #576

INITIATION

1. Provide the date and time the trooper became involved in the pursuit.

Date: 4/7/2024

Time: 1509 Hours

2. Explain the circumstances that led to the trooper's involvement in the pursuit.

On 4/7/2024, at approximately 1509 hours, TFC Johnson was traveling southbound on I-75 in Gordon County, when he observed a white Toyota Sequoia rapidly coming up behind him. TFC Johnson confirmed the Toyota's speed on RADAR at 91 miles per hour in a posted 70 mile per hour zone. TFC Johnson slowed to let the Toyota pass by him then attempted to stop the vehicle. When TFC Johnson activated his emergency lights, the violator failed to stop and a pursuit ensued.

3. If trooper's involvement was the result of a request from another agency, provide details regarding the request.

☒ N/A

If Yes, explain:

4. List the number and identity of other agencies and officers involved in the pursuit.

☒ N/A

If needed, list:

5. If other occupants were in the patrol vehicle, identify them and state their reason for being in the vehicle.

☒ N/A

If Yes, list:

6. Did the trooper take appropriate safety precautions?

☒ Yes

☐ No

If no, explain:

7. Did the trooper eliminate distractions such as FM radio noise?

☒ Yes

☐ No

If no, explain:

COMMUNICATION

1. If the reporting trooper initiated the pursuit by means of observing a violation and attempting a traffic stop, explain the communication that took place between the trooper and the CEO.

☐ N/A

If Yes, explain: TFC Johnson contacted the Troop A Communications Center by radio and advised them that he was in a pursuit. TFC Johnson provided his location, direction of travel and a description of the vehicle. Dispatcher Brewer received this information and created a CAD call for the pursuit.

2. Did the trooper relay pertinent information to the CEO including:

- Location and direction of travel.
- Description of the pursued vehicle.
- Number and description of occupants.
- Information regarding the use of firearms, threat of force, or other hazard.
- Options for terminating the pursuit.
- Observed danger to public safety.
- Any need for assistance.

☒ Yes

☐ No

If no, explain:

3. Explain any communication that took place between the CEO and other law enforcement agencies or officers in the area.

☐ N/A

Explain: Once the pursuit initiated, Dispatcher Brewer cleared the radio for emergency traffic before conducting a broadcast of the pursuit to all Troop A Troopers. Chief Dispatcher Loyd contacted the Gordon and Bartow County's 911 Centers to advise them of the pursuit and to request assistance.

4. If the reporting trooper became involved in the pursuit at the request of another agency, explain any communication that took place between the trooper and another officer of the requesting agency. Give details of communication between the CEO and the requesting agency regarding the location, direction of travel, nature of the offense, any pending warrants, and details of erratic driving behavior illustrating the potential danger to the public if the suspect is not immediately apprehended.

☒ N/A

If Yes, explain:

5. Did the trooper articulate his observations?

☒ Yes

☐ No

If no, explain:

6. At the conclusion of the pursuit, did the trooper advise the CEO immediately, so other units would be familiar with the location to offer assistance, or slow in an effort to reduce the likelihood of further risk of injury to either a trooper or a member of the general public?

☒ Yes

☐ No

If no, explain:

7. Discuss any needed areas of improvement with the CEO.

☒ N/A

If Yes, explain:

PURSUIT

1. Describe the route the pursuit traveled, its duration and distance.

Describe: The pursuit initiated in Gordon County on I-75 South at GA 53 (mile marker 310) and continued southbound into Bartow County. The pursuit terminated on I-75 South just north of Adairsville Pleasant Valley Road (mile marker 304.2) in Bartow County. The pursuit traveled approximately 8.57 miles and lasted 14 minutes and 4 seconds.

2. Were the trooper's actions during the pursuit objectively reasonable?

☒ Yes

☐ No

If no, explain:

3. If the pursuit traveled into another post's territory, explain whether the initiating trooper yielded to a trooper whose territory the pursuit was in.

☐ N/A

If Yes, explain: The pursuit initiated in Post 43-Calhoun's territory before traveling into Post 3-Cartersville's territory. TFC Johnson remained in the primary position as there were no Post 43 Troopers in the area to turn the pursuit over to.

4. If the initiating trooper yielded the primary position to another unit, explain whether he proceeded to the termination point of the pursuit to provide guidance and information for the arrest of the violator.

☒ N/A

If Yes, explain:

5. Explain if there were any factors during the pursuit that indicated the possible commission of a felony.

☐ N/A If Yes, explain: The violator's actions during the pursuit support a charge of Felony Fleeing and Attempting to Elude.

6. Did the trooper articulate his observations?

☒ Yes ☐ No If no, explain:

7. Did the trooper practice commentator driving?

☒ Yes ☐ No If no, explain:

8. Did the trooper remain calm and professional during the pursuit?

☒ Yes ☐ No If no, explain:

DRIVING SKILLS

1. Did the trooper use due caution when operating his vehicle during the pursuit?

☒ Yes ☐ No If no, explain:

2. Were the driving skills/techniques initiated appropriately?

☒ Yes ☐ No If no, explain:

3. Were the driving skills/techniques appropriate during the pursuit?

☒ Yes ☐ No If no, explain:

4. Were the driving skills/techniques appropriate during termination?

☒ Yes ☐ No If no, explain:

5. Did the trooper appear to experience adrenalin rush, tunnel vision, or any other internal/external factors?

☒ No If Yes, explain:

6. Did the trooper get into the danger zone due to adrenalin rush, tunnel vision, or other factors?

☒ No If Yes, explain:

EQUIPMENT

1. Were the blue lights and siren in operation during the entire pursuit?

☒ Yes ☐ No If no, explain:

2. If the patrol car was equipped with wig-wag headlights, were they in operation during the entire pursuit?

☒ Yes ☐ No If no, explain:

3. Was the in-car camera working properly?

☒ Yes ☐ No If no, explain:

4. Was the trooper's microphone working properly?

☒ Yes

☐ No

If no, explain:

TERMINATION

1. Did the trooper continue the pursuit to a conclusion? If not, explain the reasons.

☒ Yes

☐ No

If no, explain:

2. Was there a good probability of the suspect's arrest at a later time because of positive identification?

☒ N/A

If Yes, explain:

3. Articulate attempts taken by the trooper to utilize pursuit termination techniques, such as tire deflating devices, roadblocks, P.I.T. maneuver, and trooper discretion.

☐ N/A

Explain: Due to the violator's reckless driving and with no other officers in the area, Stop Sticks and the Box-In Maneuver were not viable options. TFC Johnson decided to implement the Precision Immobilization Technique (PIT) maneuver on the Toyota. TFC Johnson matched the Toyota's speed and made contact with the left rear of the vehicle and the right front of his patrol car. However, the violator swerved away from TFC Johnson's vehicle causing the PIT to be unsuccessful.

4. Expound on safety precautions utilized by the trooper during and after the pursuit.

☐ N/A

Explain: TFC Johnson exercised due caution throughout the pursuit and demonstrated good judgement/decision making skills. TFC Johnson operated his patrol car in a responsible manner while commentating/communicating the violator's actions during the pursuit. At the conclusion, TFC Johnson didn't take any unnecessary risks while taking the violator into custody.

5. Articulate the existing traffic conditions during the pursuit, realizing the conditions may differ at various times during the pursuit.

Explain: The pursuit occurred during daytime hours with clear skies and a dry road surface. The traffic conditions along I-75 South at the time of the pursuit would be considered light.

6. Address whether there are any conditions that would create additional danger to the public by continuing the pursuit.

☐ N/A

If Yes, explain: The suspect demonstrated no intentions of stopping for law enforcement. The suspect traveled at very high speeds during the pursuit to avoid apprehension. The suspect drove in the emergency lanes for extended periods and swerved in and out between other vehicles during the pursuit. The suspect's actions put the public's safety and all involved in jeopardy.

7. Address whether there were any conditions that necessitated the pursuit being brought to an immediate conclusion and describe the conditions.

☐ N/A

If Yes, explain: The suspect demonstrated no intentions of stopping for law enforcement. The suspect traveled at very high speeds during the pursuit to avoid

apprehension, drove in the emergency lanes and improperly passed other motorists. The suspect's actions put the public's safety and all involved in jeopardy.

8. Establish whether the violator was an immediate threat to the trooper, the public or themselves.

☐ N/A If Yes, explain: The violator fled at excessive speeds, drove in the emergency lanes and improperly passed other vehicles. The violator showed no regard for the safety of herself or others.

9. Outline whether the use of deadly force was justified and if so, why it was justified.

☒ N/A If Yes, explain:

10. Establish whether the method of termination was reasonable based on the facts gathered during the pursuit, and state those facts.

☒ N/A If Yes, explain:

11. If there were any injuries, state who received them, the type and severity.

☐ N/A If Yes, explain: The violator sustained visible injuries to her right arm and hip area as a result of jumping from her vehicle while it was still moving.

12. If there was a fatality, provide basic facts surrounding the circumstances.

☒ N/A If Yes, explain:

13. Address any damage to vehicles.

☐ N/A If Yes, explain: The Dodge and the Toyota both sustained minor damage as a result of the attempted PIT maneuver. The Toyota sustained minor damage when it struck the guardrail after the violator jumped from the vehicle.

TROOPER'S ABILITIES AND EXPERIENCE

1. Prior pursuits (compare if appropriate).

☐ N/A If Yes, explain: This was TFC Johnson's 11th pursuit during his career as a Georgia Trooper.

2. Past use of techniques and high speed driving.

☐ N/A If Yes, explain: TFC Johnson has received E.V.O.C., Advanced E.V.O.C. and Pursuit-Ending Tactics Training.

ISSUES ADDRESSED

1. Positives.

☐ N/A If Yes, explain: TFC Johnson exercised due caution throughout the pursuit and demonstrated good judgement/decision making skills. TFC Johnson operated his patrol car in a responsible manner while commenting/communicating the violator's actions during the pursuit. At the conclusion, TFC Johnson didn't take any unnecessary risks while taking the violator into custody.

2. Areas for improvement.

☒ N/A

If Yes, explain:

3. Other considerations.

☒ N/A

If Yes, explain:

RESPONSE FROM TROOPER OR SUPERVISOR

1. Allow trooper and supervisor an opportunity to respond or add comments.

☒ N/A

If Yes, explain:

CORRECTIVE ACTION TAKEN

1. Describe any corrective action taken as a result of the trooper's actions during the pursuit.

☒ N/A

If Yes, explain:

Lt. T. L. Nichols #36

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Reviewing Officer

5/9/2024

Date